

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Max Gross	Team: Team # 3	CCRB Case #: 200917147	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 11/05/2009 6:30 PM	Location of Incident: New Lots Avenue and Georgia Avenue	18 Mo. SOL 5/5/2011	Precinct: 75		
Date/Time CV Reported Fri, 11/06/2009 9:47 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/06/2009 9:47 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Dennis Friendly	02755	930185	NARCBBN
2. LCD Patrick Ryan	00000	904977	NARCBBN
3. DT3 Willie Johnson	04104	925519	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Phillip Smith	07158	907062	NARCBBN
2. DT3 Brian Wood	05728	918491	NARCBBN
3. DT3 Matthew Francis	06100	925310	NARCBBN
4. POF Jennifer Lavelle	20760	933921	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Dennis Friendly	Force: Detective Dennis Friendly used physical force against § 87(2)(b)	A . Exonerated
B . DT3 Dennis Friendly	Discourtesy: Detective Dennis Friendly spoke rudely to § 87(2)(b)	B . Unsubstantiated
C . DT3 Willie Johnson	Force: Detective Willie Johnson used physical force against § 87(2)(b)	C . Unsubstantiated
D . LCD Patrick Ryan	Abuse: Lieutenant Patrick Ryan authorized the strip-search of § 87(2)(b)	D . Exonerated

Case Summary

On November 6, 2009, § 87(2)(b) filed this complaint with the CCRB on behalf of her brother, § 87(2)(b) [Enc. 6A-B]. On November 5, 2009, at approximately 6:30pm, § 87(2)(b) was walking in the vicinity of New Lots Avenue and Georgia Avenue in Brooklyn, when he became engaged in a conversation with an undercover narcotics officer. The following allegations resulted:

- **Allegation A) Detective Dennis Friendly used physical force against** § 87(2)(b)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation B) Detective Dennis Friendly spoke rudely to** § 87(2)(b) § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation C) Detective Willie Johnson used physical force against** § 87(2)(b)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation D) Lieutenant James Ryan authorized the strip search of** § 87(2)(b)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b)
§ 87(2)(b)

On November 6, 2009, § 87(2)(b) filed this complaint on behalf of her brother, § 87(2)(b) [Enc. 6A-B]. She stated that she had not witnessed her brother's arrest but heard from his friend § 87(2)(b) that Detective Friendly had punched § 87(2)(b) in the face before arresting him. She also stated that she had spoken to § 87(2)(b) on the phone after he was arrested and he corroborated the fact that Detective Friendly had "beat him up."

Victim: § 87(2)(b)

• § 87(2)(b)

Arrest Photograph

§ 87(2)(b)'s arrest photograph is enclosed [Enc.7F]. There are no visible injuries to § 87(2)(b)'s face.

Statements to Medical Personnel

On § 87(2)(b), § 87(2)(b) was present at § 87(2)(b) where he was "[complaining] of pain to body; assaulted by police" and also stated "he was beaten up by the police" [Enc. 7A-B].

CCRB Statement

On December 9, 2009, § 87(2)(b) was interviewed at the CCRB [Enc. 7C-H]. On November 5, 2009, at approximately 6:30pm, § 87(2)(b) had just gone into the "New Lots Deli", located near the intersection of Georgia Avenue and New Lots Avenue in Brooklyn. § 87(2)(b) had just purchased some candy and was smoking a cigarette as he exited the store. He finished his cigarette in front of the store and discarded it, before an individual approached § 87(2)(b) and asked him "You know where the weed be at?" § 87(2)(b) responded, "I don't know I don't be smoking anything like that. If I was you I would keep walking around." § 87(2)(b) stated that he had never seen this individual before in his life, and described him as an Hispanic male, 5'8"-5'9", 26-27 years old, with a medium build, having long hair and glasses wearing a white t-shirt and grey sweat pants. During their brief conversation, the individual had taken twenty dollars out of his pocket and had it in his hand and attempted to give it to § 87(2)(b). § 87(2)(b) denied selling this individual marijuana, possessing marijuana, or exchanging money with this individual. When the conversation concluded, § 87(2)(b) began walking down Georgia Avenue towards his home. Approximately halfway down the block, he observed a black Nissan pull up next to him. He believed that the car had turned off New Lots Avenue onto Georgia Avenue. Meanwhile, an officer identified by the CCRB as Detective Dennis Friendly of Brooklyn North Narcotics, came running down Georgia Avenue behind § 87(2)(b). § 87(2)(b) threw his hands in the air and stood still. § 87(2)(b) immediately realized that the individual he encountered on the corner must have been an undercover police officer, so he decided to put his hand in the air to cooperate with the officers.

Detective Friendly ran up to § 87(2)(b) and tackled him to the ground by coming into contact with the side of his body. Once § 87(2)(b) was on the ground, he was rolled onto his stomach and Detective Friendly pulled his hands behind his back. At that this point, § 87(2)(b) was not handcuffed but Detective Friendly was holding his hands behind his back. While Detective Friendly was on top of him he told § 87(2)(b) to "stay still." § 87(2)(b) denied moving around. § 87(2)(b) stated he was only trying to move his other hand behind his back in order to appear cooperative. § 87(2)(b) stated at no point was he attempting to resist Detective Friendly's attempts to place him in handcuffs. Detective Friendly stated, "What the fuck did you throw?" § 87(2)(b) responded, "I didn't throw anything." At that point, Detective Friendly punched § 87(2)(b) in his ribs approximately 5-6 times in response to § 87(2)(b) refusal to acknowledge throwing anything. § 87(2)(b) denied throwing anything before being arrested. The rib punches caused § 87(2)(b) pain to his ribs, which felt sore and appeared bruised later while he was being processed at Central Booking.

§ 87(2)(b) was then handcuffed by Detective Friendly and picked up off the ground. Meanwhile, an unmarked van had arrived at the scene containing two officers, identified by the

CCRB as Detective Willie Johnson and Detective Philip Smith of Brooklyn North Narcotics. Detective Johnson was described as a dark skinned black male, approximately 6'0", in 30s, with a slim build. Detective Smith was described as a heavy-set light skinned black male, approximately 5'8"-5'9" tall with a shaped beard. Detective Friendly and Detective Johnson began escorting him to van. Outside of the van, Detective Friendly punched § 87(2)(b) once in the face with his left hand, striking § 87(2)(b) on his cheek bone with a closed fist. The punch did not cause injuries, but § 87(2)(b)'s face was slightly swollen. § 87(2)(b) was then placed inside the van. Several of the officers, identified by the CCRB as Lieutenant Ryan Fitzpatrick and Officer Jennifer Lavelle of Brooklyn North Narcotics, jumped over the gate and began to search the other side. He stated that nothing was recovered from the other side of the gate. § 87(2)(b) stated that his friends § 87(2)(b) and § 87(2)(b) had been on the block at the time and possibly witnessed the incident.

Inside the van, § 87(2)(b) observed three other civilians whom he recognized from around the neighborhood. Those civilians were identified by the CCRB as § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b). § 87(2)(b) was not familiar with these individuals' names at the time of his interview, but acknowledged that he knew them as residents of his neighborhood and knew their nick names. Inside the van, § 87(2)(b) began speaking with Detective Johnson. Detective Johnson asked § 87(2)(b) for his social security number and any aliases he went by. § 87(2)(b) refused to provide this information. In response, the officers pulled the van over to the side of the road. Detective Johnson came around to the side of the van, opened the door and "jabbed" § 87(2)(b) two times with a closed fist in the side stating "Give me your alias and name!" At that point, § 87(2)(b) provided Detective Johnson with his social security number and alias causing him to cease jabbing him.

After several hours, the van arrived at the 75th Precinct for processing. Inside the 75th Precinct station house, § 87(2)(b) was strip-searched by Detective Smith in what appeared to be a bathroom near the holding cells. § 87(2)(b) was told to take off all of his clothes until he was totally naked and asked to squat. Detective Smith did not come into physical contact with § 87(2)(b) during the search. The officers also thoroughly searched § 87(2)(b)'s shoes, removing the insoles. After being lodged in the holding cells briefly, § 87(2)(b) was taken to Central Booking and eventually arraigned of charges of sale of marijuana, although he repeatedly denied being involved in any sort of narcotics trafficking during the incident. Although § 87(2)(b) was experiencing pain to his body, he did not request medical attention while in police custody. § 87(2)(b) sought medical treatment at § 87(2)(b) on § 87(2)(b), where he received X-rays on his ribcage area.

Witness: § 87(2)(b)

§ 87(2)(b) provided § 87(2)(b) contact information after his interview, indicating that § 87(2)(b) witnessed the incident. On December 16, 2009, § 87(2)(b) was contacted by phone when he provided a short phone statement that was somewhat consistent with § 87(2)(b)'s testimony [Enc. 8A]. § 87(2)(g)

On November 5, 2009, at approximately 6:30pm, § 87(2)(b) had been sitting on his stoop when he noticed § 87(2)(b) walking towards him. § 87(2)(b) had been with § 87(2)(b) at his home about an hour earlier before he left to go elsewhere for unknown reasons. § 87(2)(b) had not been running but had been just walking from the corner of New Lots and Georgia Avenue. § 87(2)(b) initially paid no attention to § 87(2)(b) until he heard the "screeching" sound of a vehicle rapidly de-accelerating vehicle and looked up to see an unmarked vehicle in close proximity to § 87(2)(b). § 87(2)(b) was not sure how far he was sitting from § 87(2)(b) during the initial incident. He observed PO1 (described as a slim Hispanic male or

light-skinned black male) run up behind § 87(2)(b) and push him down to the ground by his shoulders. He saw § 87(2)(b) hit the ground with PO1 on top of him. From his vantage point, § 87(2)(b) could not see exactly what happened on the ground, but it appeared that a struggle was occurring because he could see PO1's arms moving around rapidly. He was not sure if he was punching § 87(2)(b) but it appeared that he could have been. After § 87(2)(b) was picked up to his feet in handcuffs, § 87(2)(b) observed PO2 (described as a dark skinned black male with a heavy build) walk up to him and an unmarked van arrived at the scene. Before they placed him inside of the van, he heard PO2 saying something to § 87(2)(b) before punching him once in the face. § 87(2)(b) observed what appeared to be PO2's right first strike § 87(2)(b)'s face causing his face to move to the side. Out of surprise, § 87(2)(b) called out "Ohhhh!" PO2 heard § 87(2)(b) call out, and turned around and told him "This is none of your business. Get back inside of the house." § 87(2)(b) did not go back into his house but § 87(2)(b) was quickly placed inside the vehicle and removed from the scene.

At the conclusion of his phone statement, § 87(2)(b) agreed to appear at the CCRB the following day to provide a verified statement. On January 17, 2010, § 87(2)(b) missed his scheduled appointment at the CCRB without calling to cancel or reschedule. Before closing the case, the investigator reached out § 87(2)(b) again to see if he would provide testimony regarding the incident. When contacted by phone on May 13, 2010, § 87(2)(b) agreed to appear at the CCRB for a second time. On May 18, 2010, § 87(2)(b) missed his second scheduled appointment at the CCRB without calling to cancel or reschedule. § 87(2)(b) was mailed two "missed appointment" letters on January 17, 2009, and May 18, 2010. Neither letter has been returned to the CCRB stamped "return to sender." To date, § 87(2)(b) has made no attempts to contact the CCRB.

Witness: § 87(2)(b)

- § 87(2)(b) was arrested before § 87(2)(b) for § 87(2)(b) and was present inside of the prisoner van when § 87(2)(b) was lodged inside. His home number was obtained using a LexusNexis search.

On February 4, 2010, § 87(2)(b) was contacted by phone when he provided a brief phone and vague statement about what he observed inside of the prisoner van [Enc. 8B]. § 87(2)(b) remembered the incident and explained that he knew § 87(2)(b) as an acquaintance from the neighborhood. § 87(2)(b) stated that while inside of the prisoner van, several of the prisoners and the two police officers began to have a "back and forth" as the prisoners were giving the officers an attitude while the officers were attempting to gain pedigree information from them. The officers were giving § 87(2)(b) a "hard time" for refusing to provide information, and at one point the officers stopped the van and one officer came to the back and began to "duff up" or strike § 87(2)(b) numerous times in the body and face.

After providing the brief narrative, the investigator informed § 87(2)(b) that his statements were important in the investigation and he would like to obtain a verified statement from him. However, § 87(2)(b) declined to participate in the investigation formally, stating he was not interested in providing formal testimony or cooperating with the CCRB further.

Attempts to Contact Civilians

- When § 87(2)(b) appeared at the CCRB, he listed his friend § 87(2)(b) as a witness. However, he did not initially provide the investigation with any means to contact § 87(2)(b) by phone, only providing his address. On January 29, 2010, the investigator contacted § 87(2)(b) and requested he provide him with a telephone number for § 87(2)(b). § 87(2)(b) provided the investigator with § 87(2)(b)'s cell phone number, which had a New Jersey area code. Between February 2, 2010, and April 30, 2010, the number § 87(2)(b) provided was

called five times. On all five occasions, the phone rang and went to a generic voicemail box. Detailed messages were left requesting § 87(2)(b) to contact the investigator. A letter was mailed to the address that § 87(2)(b) provided for § 87(2)(b) but it was returned to the CCRB stamped “return to sender.” A LexisNexis search did not reveal further contact information for § 87(2)(b) at his listed address. To date, § 87(2)(b) has not contacted the CCRB in order to provide any sort of statement regarding the incident.

- The investigation was unable to obtain an operable line of contact with the two other individuals who were detained inside of the prisoner van, § 87(2)(b) and § 87(2)(b). Searches through the LexisNexis, COLES, whitepages.com, and New York State Department of Motor Vehicles could not provide working telephone number contact information for § 87(2)(b) s 495 Pennsylvania Avenue. § 87(2)(b) s NYSID arrest history report lists only one address. As such, the investigation could only contact § 87(2)(b) via mail. § 87(2)(b) was mailed a please call letter on January 13, 2010, and April 28, 2010. Neither letter was returned to the CCRB stamped “return to sender”. Periodic checks with the New York City Department of Correction’s database of the course of the investigation indicated that § 87(2)(b) was never incarcerated during the investigation or at the time of the investigation’s closing. To date, § 87(2)(b) has not attempted to contact the undersigned investigator.
- The investigation was left with similar circumstances for § 87(2)(b) as he only had one address listed on his NYSID history sheet as well and the investigation was unable to uncover an operable telephone number after exhausting available databases. However, from his BADS arrest report it was determined that § 87(2)(b) had contacted his sister § 87(2)(b) s cell phone after his arrest. On February 27, 2010, § 87(2)(b) was reached by telephone and she provided the investigator with ambiguous information about her brother’s whereabouts and stated that she could not provide the investigator with a more direct line of contact with him. § 87(2)(b) agreed to take a message for § 87(2)(b) to contact the investigator. Between March 30, 2010, and June 30, 2010, § 87(2)(b) s cell phone was contacted four additional times and four more messages were left with § 87(2)(b) requesting her brother contact the CCRB. § 87(2)(b) was also mailed a please call letter on January 13, 2010, and April 28, 2010, neither have which have been returned to the CCRB stamped “return to sender.” Periodic checks with the New York City Department of Corrections database indicated that § 87(2)(b) was not incarcerated during the investigation or at the time of the investigation’s closing. To date, § 87(2)(b) has not attempted to contact the undersigned investigator.

NYPD Statements:

O.C.C.B. Buy Report

The investigation obtained a copy of the O.C.C.B. Buy Report, completed by the primary undercover officer involved in the narcotics sting [Enc. 27]. The report details verbatim, “At t/p/o [the undercover officer] approached § 87(2)(b) at the corner of Sheffield and New Lots. I asked § 87(2)(b) if he had any [marijuana]. § 87(2)(b) then asked me, ‘How much [marijuana] are you looking for?’ I then told § 87(2)(b) that I wanted \$20 worth of [marijuana]. § 87(2)(b) then asked me for the money. I then handed § 87(2)(b) \$20. § 87(2)(b) then reached into his private area and handed me 4 clear zip lock bags of a green leafy substance. I then left the location, [and] signal[ed] my ghost a positive buy sign [to] notify the field team of what had transpired. At 6:30pm I observed the field team in custody of § 87(2)(b) near the corner of New Lots and Georgia.”

Subject Officer: DETECTIVE DENNIS FRIENDLY, BK NORTH NARCOTICS

- Detective Friendly is a § 87(2)(b)-old black male who stands 5'11" and weighs 200 pounds. He has black hair and brown eyes.
- On November 5, 2009, Detective Friendly worked from 3:00pm to 11:00pm, and was assigned to be the arresting officer of the narcotics field team conducting buy and bust operations within the confines of the 75th Precinct. He was dressed in plainclothes, and assigned to the lead auto (unmarked black Jeep Cherokee, RMP #§ 87(2)(b) with Lieutenant Ryan and Officer Lavelle.

Memo Book [Enc. 10A-C]

At 6:30pm, Detective Friendly wrote that he had placed § 87(2)(b) under arrest.

OLBS Arrest Report [Enc. 9A-B]

Detective Friendly completed § 87(2)(b)'s OLBS arrest report. The narrative noted the following verbatim, "At [time and place of occurrence] defendant did exchange a quantity of marijuana for USC with [a undercover police officer]. Defendant did resist arrest. Defendant was strip searched authorized by Lieutenant Ryan." The arrest report does not note that force was used to place § 87(2)(b) under arrest. § 87(2)(b) was charged with § 87(2)(b).

CCRB Statement [Enc. 11A-C]

On April 27, 2010, Detective Friendly was interviewed at the CCRB. On November 5, 2009, the Brooklyn North Narcotics 75th Precinct module field team was conducting buy and bust operations in the vicinity of New Lots Avenue and Georgia Avenue. The team had been using two undercover officers, a primary undercover and a ghost undercover to attempt to purchase narcotics. At approximately 6:30pm, an individual (identified by the investigation as § 87(2)(b)) became engaged in a conversation with the primary undercover officer. Detective Friendly was driving the "lead auto" with Lieutenant Ryan in the front passenger seat and Officer Lavelle in the rear passenger seat. The undercover was using the "KEL" transmitting device, and Detective Friendly was listening to the "transaction" conversation occur between § 87(2)(b) and the undercover inside of the lead auto. Detective Friendly could not recall the specifics of the conversation beyond that it involved the sale of marijuana. After the transaction was complete, the primary undercover motioned to the ghost undercover, who radioed the field team that a "positive buy" had occurred and provided § 87(2)(b)'s physical description and his direction of movement. Detective Friendly could not recall the exact information relayed to the field team.

After interacting with the undercover, § 87(2)(b) proceeded northbound on Georgia Avenue towards New Lots Avenue. § 87(2)(b) was the only person on the block at the time. As he was walking, the primary chase vehicle attempted to pull in front of § 87(2)(b) at the intersection of Georgia Avenue and New Lots Avenue. When the vehicle pulled in front of § 87(2)(b) he recognized the car as a police vehicle, and turned around and ran back southbound on Georgia Avenue. The chase auto followed § 87(2)(b) down the street, accelerating past him as he ran. Once the vehicle pulled past § 87(2)(b) he doubled back towards New Lots Avenue. At this point, Detective Friendly's vehicle had pulled into the block behind the chase auto. Detective Friendly exited the lead auto onto the curb near the intersection of New Lots Avenue and Georgia Avenue with his shield out and displayed. § 87(2)(b) was running towards him, and he did not initially notice Detective Friendly. As he ran, he reached into the groin area of his pants and removed what appeared to be a sandwich bag sized zip-lock bag and threw it over a 10-12 foot fence into an empty lot. Detective Friendly was approximately 50 feet from § 87(2)(b).

when he observed this, and he proceeded to run towards him. After appearing to throw the bag, § 87(2)(b) noticed Detective Friendly moving towards him and ran across Georgia Avenue. Detective Friendly was fairly close to § 87(2)(b) at this point, and he chased after him across the street, eventually catching up to him on the other side of the street. As he pursued § 87(2)(b) he yelled out “Police! Stop running!” After a foot pursuit of several seconds, Detective Friendly caught up to § 87(2)(b). When Detective Friendly caught up to § 87(2)(b) “we just kind of fell over onto the ground”. He came into physical with the side of § 87(2)(b)’s body. He denied “tackling” § 87(2)(b) but stated that he grabbed onto his side and shoulders and the momentum of them both running carried them to the ground. He explained that it was more of a collision than an intentional tackle, and he was not attempting to run through him to knock him down.

Once on the ground, Detective Friendly and § 87(2)(b) rolled around, and at one point § 87(2)(b) was actually on top of Detective Friendly, but Detective Friendly was able to roll over regain the dominant position. Once on top of § 87(2)(b) he grabbed his arms and immediately placed him in handcuffs. § 87(2)(b) was no longer resisting Detective Friendly while on the ground and was not saying anything. Detective Friendly denied striking § 87(2)(b) with his fist at any point to gain his compliance. Detective Friendly was the only officer to come into physical contact with § 87(2)(b) to place him under arrest. Detective Friendly denied punching § 87(2)(b) in the face after he was handcuffed and explained that he had no problems with § 87(2)(b) after he had been handcuffed. Detective Friendly was informed that § 87(2)(b) sought medical treatment for pain to his ribs and side shortly after the incident. Detective Friendly did not know why and could not speculate on why § 87(2)(b) would be complaining of injury to this region. He explained that “when they rolled” it was possible that he came in contact with his side.

After he was handcuffed, Detective Friendly denied having any conversation with § 87(2)(b) about what he attempted to discard. He denied saying, “What the fuck did you throw?” Detective Friendly elaborated that “I already knew what he threw; I didn’t need to ask him.” Detective Friendly did not observe or notice any other civilians on the block. Shortly after § 87(2)(b) was handcuffed, Lieutenant Ryan and Officer Lavelle arrived at his arrest location and radioed for the prisoner van to come to the location. Detective Friendly informed them of where he saw § 87(2)(b) attempt to discard the narcotics, and they both went and climbed over the fence to look for the narcotics. The search was negative, as the lot was shrouded in weeds which made it difficult to locate the drugs. While they were waiting, and before § 87(2)(b) was placed in the van, the undercover came around the block and confirmed with the field team that § 87(2)(b) was the individual from whom he purchased the marijuana.

The prisoner van arrived approximately 1-2 minutes after § 87(2)(b) was handcuffed. Detective Friendly explained that § 87(2)(b)’s demeanor during the incident was “very casual.” Several of the prisoners who had been inside of the van immediately recognized § 87(2)(b) and called him out by his nickname “Yo! § 87(2)(b) We knew that was you running!” § 87(2)(b) and the other prisoners began laughing back and forth in “street conversations.”

The field team set up at three additional locations before returning to the 75th Precinct to process the arrests. They arrived at the precinct at 9:15pm. § 87(2)(b)’s demeanor remained “mild” when Detective Friendly encountered him inside of the station house. Detective Friendly was not informed by either Detective who was assigned to the prisoner van that they had trouble with § 87(2)(b). He heard that they were “joking and laughing” because they knew each other. Several of the other officers assisted in processing § 87(2)(b)’s arrest, and he knows that the officers assigned to the prisoner van strip-searched § 87(2)(b). Detective Friendly stated the strip-search was authorized by Lieutenant Ryan and was properly documented on the 75th Precinct’s command log. Detective Friendly did not lodge § 87(2)(b) in the holding cells, and

his involvement in the arrest was mostly administrative as he completed the arrest paper work. § 87(2)(b) did not at any point complain of any injury or that he was feeling sick. He did not appear injured. He was not involved in the transport of § 87(2)(b) or any prisoner to Central Booking. Beyond running from the officers, Detective Friendly could not describe any additional aspects of § 87(2)(b)'s behavior that he would categorize as resistant behavior.

Subject Officer: LIEUTENANT JAMES RYAN, BK NORTH NARCOTICS

- Lieutenant Ryan is a § 87(2)(b)-old white male who stands 5'9" and weighs 175 pounds. He has brown hair and brown eyes.
- On November 5, 2009, Lieutenant Ryan worked from 2:25pm to 11:00pm and was supervising the Brooklyn North Narcotics 75th Precinct modules, who were conducting buy and bust operations. He was dressed in plainclothes, and was working in the "lead auto" with Detective Friendly and Officer Lavelle, an unmarked black Jeep Grand Cherokee (Rental Auto #§ 87(2)(b)).

Memo Book [Enc. 14A-C]

At 6:20pm, Lieutenant Ryan noted that the field team had set up at New Lots Avenue and Georgia Avenue. At 6:30pm, he wrote that they had a positive buy and had placed an individual under from criminal sales of narcotics and tampering with physical evidence.

CCRB Statement [Enc. 15A-C]

On February 9, 2010, Lieutenant Ryan was interviewed at the CCRB. § 87(2)(g). Only additions or exceptions to Detective Friendly's statements are summarized below.

Lieutenant Ryan observed Detective Friendly attempt to grab § 87(2)(b)'s body, and § 87(2)(b) began to flail his arms out in an attempt to escape Detective Friendly's grasp. This caused both Detective Friendly and § 87(2)(b) to fall to the ground. Once on the ground, § 87(2)(b) did not further resist arrest, and the rest of field team arrived to help assist Detective Friendly in placing § 87(2)(b) in handcuffs. Lieutenant Ryan estimated that he was approximately 20 feet from § 87(2)(b) and Detective Friendly while § 87(2)(b) was being handcuffed. He did not see Detective Friendly strike § 87(2)(b) with a fist at any point during the incident. He did not recall Detective Friendly saying "What the fuck did you throw?" He could not recall overhearing Detective Friendly use any discourteous language during the incident.

At approximately 9:15pm, the field team arrived at the 75th Precinct in order to process the arrests. Lieutenant Ryan explained that he supervised the arrest process. The officers informed him that he had been "fidgiting" around inside of the prisoner van. That was the only information relayed about § 87(2)(b)'s demeanor inside of the van by the officers assigned to the van. Lieutenant Ryan was also informed by the undercover officer who purchased the marijuana from § 87(2)(b) stated that he had reached into his "groin area" to remove the narcotics before the transaction. As a result, Lieutenant Ryan authorized a strip-search to be conducted inside the 75th Precinct. The strip search was conducted in the bathroom of the back cells, with negative results. Lieutenant Ryan could not recall which officer conducted the strip-search, but stated that it was likely one of the officers assigned to the prisoner van. Lieutenant Ryan noted that he recorded § 87(2)(b)'s strip search in the 75th Precinct's command log.

Subject Officer: DETECTIVE WILLIE JOHNSON

- Detective Johnson is a § 87(2)(b)-old black male who stands 6'1" and weighs 215 pounds. He has black hair and brown eyes.
- On November 5, 2009, Detective Johnson worked from 3:00pm to 11:00pm, and was assigned to the prisoner van of a narcotics field team conducting buy and bust operations within the confines of the 75th Precinct. He was dressed in plainclothes, and was working with Detective Smith, inside of an unmarked white van (RMP #§ 87(2)(b)).

Memo Book [Enc. 12A-B]

At 6:30pm, Detective Johnson noted that he had one under at the corner of Georgia Avenue and New Lots Avenue. At 9:15pm, Detective Johnson noted that he had begun to process the arrests of the prisoners obtained during the buy and bust operation.

CCRB Statement [Enc. 13A-C]

On March 24, 2010, Detective Johnson was interviewed at the CCRB. Detective Johnson stated that he did not witness § 87(2)(b)'s initial arrest, as he had been parked approximately several blocks away from arrest location "off the set." They got a call from the field team, and they drove to the corner of New Lots and Georgia Avenue to lodge § 87(2)(b) in the prisoner van. Detective Johnson could not recall if he was the operator or recorder of the prisoner van on that date, and he did not make a notation in his memo book about his assignment. As he was pulling up, he observed § 87(2)(b) was in handcuffs and standing up, but he could not recall which officer walked him over towards the van. The field team was searching around the area, as § 87(2)(b) had apparently attempted to discard something as they were arresting him. He did not see any force being used on § 87(2)(b). He did not observe any officer striking § 87(2)(b) in the face.

Three individuals were already inside of the prisoner van prior to § 87(2)(b)'s arrest. Detective Johnson had not had any problems with those prisoners prior to taking § 87(2)(b) into the van. The other prisoners appeared to recognize § 87(2)(b) immediately as he was brought to the van and were calling him by the name "§ 87(2)(b)" or "§ 87(2)(b)". Although the three individuals who were inside of the van were arrested from a different location, it appeared to Detective Johnson that they were friends with § 87(2)(b). Detective Johnson repeatedly referred to the fact that § 87(2)(b) was "joking and laughing" during the entire incident and appeared not to be taking his arrest seriously.

§ 87(2)(b) was placed inside the van, and the officers continued for several additional "sets" after § 87(2)(b)'s arrest. The four prisoners were inside of the van for approximately two hours before arriving at the 75th Precinct station house at approximately 9:15pm. Detective Johnson explained that he had no problems with prisoners and they continued to joke around with each other. Detective Johnson "probably" asked the civilians inside of the van to provide their nick names and social security numbers. He stated the individuals were all cooperative in providing this information to the officers. Detective Johnson could not remember stopping the van because the prisoners had become unruly inside. Detective Johnson did not remember getting out of the van to go the side door to directly address the prisoners. He explained the only time they would get out of the van in this matter is if the prisoners were asked to have their handcuffs adjusted. Detective Johnson did not remember stopping the van for this reason during the tour. Detective Johnson denied striking any individual who was inside the van with a fist while attempting to obtain information from them. He did not see Detective Smith strike any individual. He explained, "I don't remember them even saying anything to me." He stated the extent of their interactions inside of van was obtaining their pedigree information for the prisoner property envelopes.

Detective Johnson did not speak to Detective Friendly about the circumstances surrounding § 87(2)(b)'s arrest. Detective Johnson explained that the officers assigned to the prisoner van commonly assist the arresting officer with the arrest paper work, but he was unsure in which capacity he assisted in § 87(2)(b) arrest. Detective Johnson stated that the prisoner property envelope is completed inside the prisoner van, although he was not sure which officer completed the form for § 87(2)(b). § 87(2)(b) did not complain of any injury or appear injured. He did not request medical treatment. § 87(2)(b) was strip searched in the back bathroom of the station house per Lieutenant Ryan's authorization.

Witness Officer: DETECTIVE PHILIP SMITH

- *Detective Smith is a § 87(2)(b)-old light-skinned black male who stands 5'10'' and weighs 240 pounds. He has black hair and brown eyes. During his appearance at the CCRB, Detective Smith had a shaped beard.*
- *On November 5, 2009, Detective Smith worked from 2:27pm to 11:00pm, and was working with the Brooklyn North Narcotics 75th Precinct module conducting buy and bust operations. He was working with Detective Johnson, dressed in plainclothes, assigned to the prisoner van, an unmarked white van (RMP #§ 87(2)(b)).*

Memo Book [Enc. 18A-B]

At 6:30pm, Detective Smith wrote that he had one under at the corner of New Lots Avenue and Georgia Avenue

CCRB Statement [Enc. 19A-B]

On March 26, 2010, Detective Smith was interviewed at the CCRB. Detective Smith's statements were consistent with those provided by his partner, Detective Johnson. Detective Smith stated that he had little recollection of this incident, describing it as a typical "p-van job." Detective Smith did not see Detective Friendly strike § 87(2)(b) at any point after he was restrained in handcuffs. Referring to his memo book, Detective Smith acknowledged that they already had three prisoners inside the van when they went to pick up § 87(2)(b). On that particular van, there is no cage separating the front seat from the rear seats. Detective Smith could not recall there being anything "out of the ordinary" with the prisoners during this incident. Detective Smith "was sure that he interacted" with § 87(2)(b) at some point during the incident, likely to take his pedigree information. He was unsure whether he completed the prisoner property envelope or whether it was completed by Detective Johnson or another officer. He explained that this is usually done by the officers inside of the prisoner van because they take all of the prisoner's property.

Detective Smith could not recall § 87(2)(b) giving him a hard time while he was attempting to get his pedigree information or alias. Detective Smith stated normally civilians will "hesitate to give their social security numbers for whatever reason", but will not hesitate to provide most other information. Detective Smith could not recall § 87(2)(b)'s demeanor whatsoever, stating that he was speculating a lot of his statements based on his past interactions with prisoners when he was assigned to the prisoner van. Detective Smith stated that the officers did not pull over the vehicle and get outside of the vehicle and walk to the side door to address § 87(2)(b). He denied opening the door and jabbing § 87(2)(b) with his fist in attempt to gain information from him. He denied witnessing Detective Smith do so either.

OFFICERS NOT SUMMARIZED:

The remaining members of the field team: Officer Lavelle [Enc. 16A-B, 17A-B], Detective Wood [Enc. 22A-B, 23A-B], and Detective Francis [Enc. 20A-B, 21A-B], were also interviewed at the CCRB. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Medical Records

- § 87(2)(b)'s pre-arraignment screening form is enclosed [Enc. 24A-B]. § 87(2)(b) did not complain of any injury or illness before being processed inside of Brooklyn Central Booking. There are no other abnormalities noted on the screening form.
- On § 87(2)(b), § 87(2)(b) was present inside of the § 87(2)(b) Emergency Room at 5:49pm, complaining of moderate pain to his ribs [Enc. 25A-T]. The doctor noted that § 87(2)(b) had "tenderness" to his ribs but also noted that he had no swelling or redness to his chest region. § 87(2)(b) received an x-ray of his ribcage which showed no broken bones or fractures to the area. He was diagnosed with "rib pain and rib contusion" and discharged with a prescription to Motrin and advised medicate based on pain level.

NYPD Document

- Numerous documents, including the Felony Narcotics Possession Sheet [Enc. 28], property vouchers [Enc. 30A-D], and Field Test Report [Enc. 29], also corroborate that § 87(2)(b) had sold a quantity of marijuana to the undercover officer preceding the incident. Those documents are also enclosed in the case file.
- The 75th Precinct command log is enclosed [Enc. 26]. § 87(2)(b)'s arrest was stamped in at 8:40pm and his condition was noted as "apparently normal". The log highlights that force was used to arrest § 87(2)(b) and Lieutenant Ryan noted that he had authorized the strip-search.

Arrest for Incident and Disposition

- On § 87(2)(b), § 87(2)(b) plead guilty to disorderly conduct and received a conditional discharge contingent on his completion of two days of community service [Enc. 38B-E]. On § 87(2)(b), § 87(2)(b) completed his required community service for this arrest.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of April 29, 2010, with regard to the incident [Enc. 41A].

Civilian Criminal History [Enc. 38A-Q]

- § 87(2)(b)
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) [Enc. 4] and the first complaint involving § 87(2)(b) [Enc. 5].

Subject Officers CCRB History

- Detective Friendly has been a member of the service for 7 years and there are no substantiated CCRB allegations against him [Enc. 1A-B].
- Lieutenant Ryan has been a member of service for 16 years and there are no substantiated CCRB allegations against him [Enc. 2].
- Detective Johnson has been a member of the service for 10 years and there are 3 substantiated CCRB allegations against him [Enc. 3A-C]. In case 200402129, the CCRB substantiated an allegation of improper frisk and an allegation that he refused to provide name and shield number to a civilian. The NYPD gave Detective Johnson instructions as a disciplinary recourse for this case. In case 200906329, the board substantiated an allegation that Detective Johnson illegally entered and searched an apartment. The board recommended Detective Johnson to be brought up on charges in regards to the incident. To date the NYPD has not made a disciplinary determination on the board's recommendation.

Conclusion

Identification of Subject Officer

- Detective Friendly acknowledged that he was the officer who chased after and used force to place § 87(2)(b) under arrest. He also matched § 87(2)(b)'s physical description of the officer who allegedly punched him in the torso and face and directed profanity towards him. Therefore, allegations A and B will be pleaded against Detective Friendly.
- § 87(2)(b) provided accurate physical descriptions of the majority of the officers he observed at the scene, including the two officers who were assigned to the prisoner van. He alleged that the officer who jabbed him several times in the side was a dark skinned black male, approximately 6'0'', in 30s with a slim build. Detective Johnson has a noticeably darker complexion than Detective Smith, and stands 6'1'' and weighs 215 pounds. Detective Smith's physical appearance is noticeably different to Detective Johnson - he has a lighter

§ 87(2)(g)

[REDACTED]

Allegation B) Detective Dennis Friendly spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that before he was handcuffed, Detective Friendly asked him “What the fuck did you throw?” Detective Friendly denied directing discourteous language at § 87(2)(b) during the incident, and also denied asking § 87(2)(b) about what he attempted to discard during the brief foot pursuit. None of the officers interviewed testified that they overheard Detective Friendly use profanity during the incident. § 87(2)(g)

[REDACTED]

Allegation C) Detective Willie Johnson used physical force against § 87(2)(b)

§ 87(2)(b) alleged that while he was inside of the prisoner van, he refused to provide Detective Johnson with his social security number. In response, he alleged that Detective Smith pulled over the vehicle and Detective Johnson came to rear of the vehicle and jabbed him several times in the side with his fist he was in handcuffs demanding his social security number. § 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

Allegation D) Lieutenant James Ryan authorized the strip search of § 87(2)(b)

Patrol Guide Procedure 208-05 states that a strip-search can be authorized and conducted if the arresting officer reasonably believes a person to be hiding contraband in a manner that would not previously discovered during normal arrest search procedures [Enc. I-II]. § 87(2)(b) was arrested for selling narcotics in an open air drug market, a crime which has a high incidence of individuals secreting narcotics or other paraphernalia to avoid police detection. Furthermore, the buy report details that § 87(2)(b) removed a quantity of marijuana from his crotch region during the narcotics sale. § 87(2)(g)

Team: _____

:

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____